CREDIT FACILITY APPLICATION (INCORPORATING TERMS & CONDITIONS & SURETY)

THE GROCERY EXPRESS (PTY) LTD

Reg. No. 2022/676891/07 | Vat. No. 4470310063
(hereinafter "the Supplier")

Customer's Registered/Legal Name: _____ (hereinafter "the Customer")

Type of Business: _____ Reg. No.: _____ VAT No.: _____

All Trading Names: _____ Liquor License No.: _____

Physical Address *(Domicilium Address)*: _____

Postal Address: _____ Postal Code: _____ Telephone No: _____

Fax No: _____ Email Address: _____ Cell No: _____

Delivery Addresses:

Name of Business Unit: Delivery Address:

1. _____ _____

2. _____ _____

Details of Directors: Nature of Business: _____

Name:	Home Physical Address:	ID Number:	Tel. No:	Married ANC/COP

Name of Holding Company: _____

Estimated Monthly Spend: R _____ (For assessment purposes only and does not form part of this contract)

Estimated Annual Turnover: R _____

Requested Credit Terms: _____

Does the Customer use Purchase Order Numbers: _____

Business Premises: If leased - name and telephone number of Landlord: _____

Auditors: _____ Year Customer commenced Business: _____

BANK DETAILS: Bank: _____ Branch Code: _____ Account No.: _____

Preferred method of payment: _____

Person responsible for paying accounts: _____ Tel: _____ Email: _____

Person responsible for ordering: _____ Tel: _____ Email: _____

Have any of the directors or shareholders ever been a shareholder or director of a business that was previously sequestrated, liquidated or are any Parties cited herein subject to any Debt Re-arrangement in terms of the National Credit Act? _____

If Yes: please list details below:

Director/Shareholder Name:	Company/CC Name:	Company/CC Reg No:

STANDARD TERMS AND CONDITIONS

1. INTRODUCTION

1.1. The “Supplier” referred to in this agreement is the supplier as cited and identified on the front page of this application.
1.2. Once the Application has been approved by the Supplier, the Application and the terms and conditions set out below, including all notices sent to the Customer and annexures attached hereto ("this Agreement"), shall apply to the sale of any goods or the rendering of services by the Supplier to the Customer. The terms and conditions as set out in this agreement will apply mutatis mutandis (in the exact same manner) to future addendums and annexures to this agreement.
1.3. The Customer acknowledges and agrees that the Supplier will only be able to commence with its services or deliver any goods under this Agreement, once the Supplier has approved the Customer's Application, and any further conditions imposed by law have been complied with. In the event that the Supplier provides services and or delivers goods to the customer before the formal approval of this application then and in such event the customer accepts and agrees that the terms and conditions herein shall apply and govern the relationship between the Supplier and the Customer.
1.4. “Customer” shall include this applicant and any other third parties, duly authorised to purchase on the customer’s account as per a duly signed authorisation to third parties to purchase on the customer’s account.
1.5. “Parties” shall mean collectively the Supplier and the Customer and “Party” means any one of them.

2. APPLICATION

2.1 This Agreement or any amendment, or addenda thereto is the only valid and binding agreement between the parties. Any variation of the agreement shall only be enforceable if it is reduced to writing and signed by or on behalf of all the parties.

3. PRICE OF GOODS AND PRICE VARIATIONS

3.1 The price of the goods will be the latest applicable price list of the Supplier at the date of order.
3.2 Should a Customer place an order based on an agreed price between the parties and then take less than the amount ordered, the Supplier has the right to adjust the price based on the additional cost to Supplier on the basis that the quoted price is calculated on the minimum load tonnage referred to.
3.3 All prices are based on fuel and transport charges prevailing as at the date of acceptance of the Customer’s order by the Supplier. Any increase in any of the said rates after such date but before delivery shall, at the Supplier’s discretion, be for the account of the Customer.
3.4 Unless otherwise stated all prices are exclusive of Value Added Tax.

4.ORDERS

4.1 All orders or variations to orders, whether oral or in writing, shall be binding on the Customer and subject to these terms and conditions and the Customer shall be estopped from denying the validity of such order.

5. PAYMENTS

5.1. Unless otherwise agreed, the Customer must pay the Supplier in accordance with the payment terms as approved by the Supplier and as set out in this Agreement ("due date").
5.2 Unless the Customer objects in writing to any item shown on the statement within 14 (fourteen) days of receipt of the statement concerned the Customer shall be deemed to accept the correctness of the statement and the onus of proving otherwise shall rest upon the Customer.
5.3. In the event of a late payment by the Customer, or any breach of the payment terms by the Customer, the full amount due to the Supplier will become due and payable in respect of all unpaid invoices.
5.4. Payments may be made by way of electronic transfer or any other means acceptable to the Supplier. It is hereby recorded that credit and debit card payments shall not be allowed, unless authorised by the Operational Management and on condition that all related levies and fees charged in relation to the payment be paid by the Customer.
5.5. The Supplier shall be entitled to (as an incidental credit provider) levy interest on all overdue amounts (i.e. amounts not paid on the due date as contemplated in 5.1 above) at a rate of 2,0% per month (24% per annum), or such other maximum rate that may be prescribed from time to time in terms of the NCA. Interest shall be reckoned from the day upon which such amount becomes overdue until the date of payment, both days inclusive.
5.7 The Customer is not allowed to set off any amount due by the Customer to the Supplier, that the Customer contends is due by the Supplier to the Customer.
5.8 Payment will only be credited to the Customer’s account once the amount is cleared into the Supplier's bank account. Any payments made into an incorrect bank account, will not discharge the Customer’s liability.

5.9 The Customer agrees that a certificate signed by a director of the Supplier, setting out the amount owing by the Customer and the applicable interest rate shall be prima facie proof of the facts therein stated and sufficient for the purposes of default judgment, summary judgment and provisional sentence or for any other purpose whatsoever.

6. DISCOUNTS

6.1 No discount on the price of goods shall be allowed unless agreed thereto in writing by the Supplier.
6.2 If any trade discount is agreed to in writing, the discount shall only apply to the actual price of the goods delivered or the services rendered and shall exclude VAT, transport costs, insurance and similar charges. Any trade discount will automatically be cancelled and fall away in the event of non-payment, or payment that has been late in respect of the specific invoice.

7. DELIVERY

7.1 Goods will be delivered to the address chosen by the Customer for purposes of delivery. If no such address has been specified, then the agreed place of delivery is the Supplier's place of business.
7.2 The Customer may request the Supplier to engage a carrier to transport the goods on behalf of the Customer. The Customer hereby authorises the Supplier to engage a carrier on such terms and conditions as it deems fit. The Customer indemnifies the Supplier against any claims that may arise from such agreement with the carrier. The Supplier shall not be liable for any loss suffered by the Customer as a result of the transportation of the goods by the carrier engaged by the Supplier at the request of the Customer.
7.3 *Prima Facie* proof of delivery to the Customer can be by means of an original/copy of –
7.3.1 the Supplier's delivery note signed by the Customer; or
7.3.2 proof of delivery to any carrier if the goods are railed or transported to the Customer by a third-party carrier.
7.4 Risk in the goods shall pass to the Customer on delivery of the goods to the Customer as defined in Clause 7.3.
7.5 Any date indicated by the Supplier for delivery of the goods shall be regarded as an estimated date of delivery and does not constitute a contractual obligation. The Supplier shall not be liable for any loss or damage of whatsoever nature, direct or indirect, consequential or otherwise, incurred or in connection with any late, incorrect, partial or non-delivery. The Supplier will make every endeavour to deliver timeously but the Customer shall not be entitled to cancel or repudiate this agreement or claim damages for consequential loss or otherwise or refuse to accept delivery or part delivery on the grounds of delay in the delivery of the order, or any part thereof, for any cause whatsoever.
7.6 The Supplier reserves the right to charge an additional amount in respect of delivery should the Customer change its delivery address.
7.7 All deliveries are subject to the availability of the goods and the Supplier shall be entitled, in its sole discretion, to split delivery of the goods ordered by the Customer in the quantities and on the date it decides, and to invoice them separately to the Customer. Each part-delivery or instalment of goods delivered shall be deemed to be sold under a separate invoice and no delay or default by the Supplier in respect of any such part-delivery or instalment shall entitle the Customer to regard the invoice in question as repudiated as regards any balance or instalment remaining to be delivered.
7.8 If the customer fails to take delivery of the goods ordered, or in any way delays the delivery of goods ordered, then the risk in the goods shall immediately pass to the customer and the customer shall be liable to pay the supplier the reasonable costs of storing, insuring, and handling the goods until delivery takes place. The Customer shall be barred from lodging any claim in respect of discrepancies between goods charged and goods delivered, unless the Customer has specified on the delivery note, the nature of the discrepancy.
7.9 In the event of a delay in excess of 1 hour in offloading the products at the delivery address of the Customer, unless such delay is the sole fault of The Supplier, the Customer agrees to pay reasonable penalties for such delay. The Supplier is not responsible for packing any stock into fridges, display areas or to rotate stock in storerooms/storage areas.
7.10 If the Supplier is prevented or restricted directly or indirectly from carrying out all or any of its obligations under these terms and conditions due to force majeure it shall have the right to cancel a Customer's order. The Supplier shall not be liable for any delay or failure in the performance of any obligations hereunder, or loss or damages either general, special or consequential which the Customer may suffer due to or resulting from such delay or failure.
7.11 For the purposes of clause 7.10, *force majeure* means any strike, Lock-out, industrial disputes, shortage of raw material or fuel, labour stoppage or disruption, fire, explosion, earthquake, storms, hail, flood, landscape, drought, lighting, physical disaster, riot, war, accident, act of God, embargo, legislation, or any other events beyond the control of the Supplier.

8. OWNERSHIP

8.1 Notwithstanding the delivery of any goods supplied or delivered by the Supplier to the Customer, the Customer acknowledges that it shall not become the owner until the Supplier has received payment of the full price and/or amounts payable in respect thereof under this Agreement.
8.2. The Supplier reserves the right to recover any goods from the Customer in the event of non-payment. The Customer has a duty to identify the Supplier when receiving Goods.

8.3 The Supplier reserves the right to inform the end user or the owner of the premises in which the goods are situated of its claim to ownership. The Customer undertakes to insure the goods until fully paid for.

9. EXCLUSION OF LIABILITY

9.1 To the extent permissible in law, the Supplier shall not, in any circumstances, be liable to the Customer for any indirect or consequential loss or damages, including without limitation, loss of business or profit.

10. COMPLIANCE WITH LAWS, INSTRUCTIONS AND WARNINGS

10.1. The Customer undertakes:

10.1.1. to satisfy and obey all relevant laws, regulations and standards relating to the goods. This includes laws, regulations and standards relating to the loading, storage, stacking, handling and use of the goods;
10.1.2. to comply with the Supplier's instructions relating to the goods, including such instructions relating to the loading, storage, stacking, handling and use of the goods;
10.1.3. to take proper notice of the warnings provided by the Supplier regarding any hazards associated with the goods;
10.1.4. not to on-sell or use the goods after their expiry date;
10.1.5. to communicate the requirements listed in this clause 10 to its customers and ensure that its customers are required to sell the goods subject to the aforesaid terms;
10.2. The Customer hereby indemnifies the Supplier from and against all claims brought against the Supplier as a result of the Customer failing to obey or adhere to (comply) with the obligations under this clause 10.

11. MANUFACTURER'S GUARANTEE, DAMAGED GOODS, INCORRECT DELIVERIES AND RETURNS

11.1. To be valid, any claims under the Manufacturer's guarantee or for damaged goods or incorrect deliveries shall be supported by the original Tax/Commercial Invoice.
11.2. Claims in respect of incorrect deliveries or damaged goods will only be considered if approved by the Supplier and if made in writing within 24 (twenty-four) hours of delivery of goods and the goods are returned 2 (two) days from the date of the claim being approved (unless extension approved by the Supplier in writing), after which time the Customer shall be deemed to have received and accepted the goods in good order and in full compliance with the orders placed.
11.3 With regards to frozen and/or chilled goods the same conditions as set out in clause 11.2 will apply, however the Supplier will not accept any returns unless such goods are returned on the same date those goods were delivered by the Supplier.
11.4 The Supplier will either replace the goods or issue a credit note for the original invoiced value of the goods returned.
11.5. Any warranty as to quality of the goods sold or fitness for any particular purpose or otherwise is hereby excluded. The Supplier shall not be under any liability whether in contract, delict or otherwise, in respect of quality in goods delivered or for any injury, damage or loss resulting from such quality or from any misuse or abuse of the goods.
11.6. The Supplier shall not be liable to the Customer for consequential losses, howsoever arising.

12. BREACH

12.1. Should the Customer fail to make payment on due date in terms of Clause 5 hereof, or should the Customer commit any other breach of its obligations hereunder, then the Supplier shall have the option to either:
12.1.1. Claim from the Customer all sums owing to the Supplier, whether then due and payable or not, which sums will then immediately become due and payable, the Customer forfeiting all discounts on the goods sold; or
12.1.2. Without prejudice to any other remedy the Supplier may have in terms of these conditions, or by law, to cancel the agreement with the Customer, retake possession of the goods supplied and not paid for and recover all amounts already due by the Customer as well as damages it may have suffered by reason of the Customer's breach. To give effect thereto, the Customer irrevocably authorises the Supplier to enter its premises to repossess its goods supplied and not paid for.
12.2. Subject to the provisions of Clause 12.1, if execution is levied upon the Customer's assets or should the Customer make any offer of compromise with its creditors or commit any act of insolvency, or if it is a limited liability Company or Close Corporation, or an application for the Customer's liquidation is made, the Supplier shall have the right to forthwith terminate the agreement with the Customer without prejudice to any claim and remedies the Supplier might have against the Customer for payment of the amounts already due prior to cancellation and damages suffered by the Supplier by virtue of the Customer's breach.

13. GENERAL

13.1. The Customer hereby consents to the Supplier:
13.1.1. performing a credit search on the Customer's record, as well as the record of its directors and/or its owners, with one or more of the registered Credit Bureaux when assessing the Customer's Application for Credit (and at any other time in the Supplier's discretion);
13.1.2. recording the existence of the Customer's account with any Credit Bureau; and/or
13.1.3. requesting, recording and transmitting details of how the Customer has performed, and how the account is conducted by the Customer in meeting its obligations on the account.
13.2. The Customer acknowledges and agrees that any information regarding its credit worthiness, defaults in payment to the Supplier, and details of its account with the Supplier, may be disclosed to any other creditor of the Customer or any registered Credit Bureaux.
13.3. In the event that there is a change of the legal entity or the name or ownership under which the account and credit facilities are being used, the Customer undertakes to notify the Supplier in writing thereof within 7 (seven) days from the date when the change takes effect. In the event that any party that acquires the business of the Customer continues to utilise the Customer's account without the aforesaid written notice having been provided to the Supplier, the Customer indemnifies the Supplier against any non-payment by such customer.
13.4. Should the Customer be domiciled outside the republic of South Africa, this agreement shall be governed and interpreted in accordance with the laws of the Republic of South Africa and the South African Courts shall have sole jurisdiction in respect thereof.
13.5. In the event of it being necessary for the Supplier to instruct its attorneys as a result of any breach of this agreement by the Customer or to recover any amounts owing by the Customer to the Supplier, the Customer agrees to pay for all legal costs on the attorney and client scale inclusive of collection commission, tracing charges, validation fees and stamp duties on any form of security the Supplier may require from the Customer.
13.7. The granting, continuation and termination of the credit facilities if any, shall be within the sole discretion of the Supplier. The Supplier furthermore reserves the right to suspend deliveries, to cancel any undelivered portion of any order or to impose such other conditions as to security and terms of payment as it deems fit.
13.8. The Customer chooses its business address appearing in the Application for Credit Facilities as its chosen domicilium citandi at executandi. The Customer hereby consents to the receipt of any notices that may be sent by email, at the email address inserted on the information page of this application.
13.10. In these terms and conditions, unless the context otherwise requires, words importing the masculine gender shall include the feminine gender and words importing to the singular shall include the plural and vice versa.
13.11. The invalidity of any clause or part thereof of these terms and conditions will not affect the validity of the rest of the terms and conditions.
13.12. The Customer warrants that, as at the signature date of this application, it is not in business rescue in terms of Chapter 6 of the Companies Act 2008 ("business rescue") and has not made any application to be placed under business rescue. Furthermore, the Customer warrants that it does not have any intention of making application for business rescue and is not aware of any current or pending circumstances relating to the business that could give rise to an application for business rescue.
13.13. The Customer agrees that in the event that the Customer is placed under business rescue, the conclusion of any compromise of the debt under such approved business rescue plan will not reduce the liability of any person or entity that has signed surety for the debts due by the Customer to the Supplier and such surety shall remain liable for the full amount of the debt that was due before such compromise, notwithstanding that it is acknowledged, agreed and understood by the Customer that the surety may be entitled to have recourse against the Customer for amounts paid by the surety to the Supplier pursuant to such suretyship.
13.14. It shall be within the discretion of the Supplier as to whether to proceed against the Customer in the Magistrates Court or the High Court, having regard to the following in terms of Section 45 of the Magistrate's Court Act 11344, as amended, the Customer hereby consents to the jurisdiction of the Magistrate's Court having jurisdiction in terms of Section 28 of the said Act in respect of any action to be instituted against it by the Supplier in terms hereof.

14. INDULGENCE

14.1. No indulgence, latitude or extension of time which the Supplier may allow the Customer, shall be regarded to be a waiver of rights by the Supplier or a novation of the Customer's liabilities under this Agreement.

15. SEVERABILITY

15.1. If any term or condition of this Agreement becomes unenforceable for any reason whatsoever, that term or condition is severable from and shall not affect the validity of any other term or condition in this Agreement.

16. CESSION

16.1. The Customer shall not be entitled to cede its rights or assign its obligations under these Terms and Conditions. The Supplier shall be entitled to cede its rights or assign its obligations under these Terms and Conditions and the cessionary shall be entitled to enforce its rights hereunder in respect of goods that it supplies to the Customer.

17. WHOLE AGREEMENT

17.1. No oral deviations and no alterations or additions to this agreement may be affected unless agreed to by all parties, reduced to writing and signed for by the Supplier and a duly authorised representative of the Customer.

18. WARRANTIES OR REPRESENTATIONS

18.1. The Customer acknowledges that there have been no warranties or representations made by the Supplier other than these which may be reflected herein.

19. ARBITRATION

19.1. The Supplier has the sole option to refer the dispute arising from or in connection with this agreement to arbitration, which arbitration shall bind both the Supplier and the Customer.
19.2. The arbitrator must be a person agreed upon by the parties or failing agreement, an arbitrator shall be appointed by the Arbitration Foundation of Southern Africa, who shall then finally resolve the dispute or issue in accordance with the Rules of the Arbitration Foundation of South Africa.

The Customer agrees that any security previously given by the Customer to the Supplier pursuant to any Credit Facility Application or otherwise shall remain of full force and effect from the date such security was provided and the execution by the Customer of this Credit Facility Application, Standard Terms and Conditions and Surety shall not in any way affect the rights of the Customer in terms of any such security.

The signatories acknowledge having read the Terms and Conditions of Sale as set out herein and initialled by me/us at the bottom of each page thereof. The signatories understand fully the importance and meaning thereof.

THE SIGNATORIES WARRANT THAT THEY ARE AUTHORISED TO SIGN THIS DOCUMENT (INCLUDING WITHOUT LIMITATION THE STANDARD TERMS AND CONDITIONS CONTAINED HEREIN AND WHICH TERMS AND CONDITIONS INCORPORATE A SURETY) ON BEHALF OF THE CUSTOMER AND THAT THE INFORMATION DISCLOSED IN THIS APPLICATION IS TRUE AND CORRECT.

DATED at _____ on this _____ day of _____20_____

FULL NAME AND SURNAME _____

CUSTOMER ID NUMBER _____

CAPACITY _____
(who warrants that he/she is duly authorised hereto)

CUSTOMER SIGNATURE _____

FULL NAME AND SURNAME _____

CUSTOMER ID NUMBER _____

CAPACITY _____
(who warrants that he/she is duly authorised hereto)

CUSTOMER SIGNATURE _____

WITNESS FULL NAME AND SURNAME _____

WITNESS ID NUMBER _____

WITNESS TO CUSTOMER SIGNATURE _____